
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager *TJB*
DATE: July 14, 2021
SUBJECT: Consideration of Bid #E-40-21 for a Contract between the City of Cheyenne and Goat Green, LLC, for providing Vegetation Management for Dry Creek and Crow Creek, for the City of Cheyenne Engineering Department

One (1) bidder responded to this bid, and the bid tabulation is attached.

The One (1) Bid was received from:

1. Goat Green, LLC, Wellington, CO.

The bid was reviewed by Tom Cobb (Engineering), and Sam Berta (Engineering). Their recommendation is to accept the lowest responsive bid from Goat Green, LLC, for providing Vegetation Management for Dry Creek and Crow Creek, for the City of Cheyenne Engineering Department, for a bid award amount of \$69,776.00.

Funding: 020-26-2618-42-43601 (1% Sales Tax 19-22 / Drainage)

\$69,776.00

BID TABULATION
CITY OF CHEYENNE - PURCHASING
BID NUMBER: E-40-21
 Bid Opening: July 2, 2021
Vegetation Management

					<i>Vegetation Management</i>		
Bidder Name & Location	Addendum (NONE)	Signed	Bid Guarantee (5%)	Meet All Qualifications	Dry Creek (15 Days)	Crow Creek (15 Days)	Grand Total
Goat Green, LLC. Wellington, CO.	N/A (NONE)	YES	YES	YES	\$ 34,888.00	\$ 34,888.00	\$ 69,776.00

INQUIRIES REGARDING THIS BID SHOULD BE DIRECTED TO:
 CITY OF CHEYENNE, PURCHASING MANAGER, PHONE: (307) 773-1045, EMAIL: TBARTTELBORT@CHEYENNECITY.ORG
 MUNICIPAL BUILDING, 2101 O'NEIL AVE, ROOM 309, CHEYENNE, WYOMING 82001

TJB

CITY OF CHEYENNE, WYOMING
AGREEMENT

Approved as to
form only:

Date: 2/13/21

Bid No. E-40-21

Contract No. _____

THIS AGREEMENT, entered into this ____ day of _____, _____, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and **GOAT GREEN, LLC**, hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "**Vegetation Management**" project all in strict accordance with the Contract Documents including all addenda thereto, numbered and dated: None.

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by **November 1, 2021**. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Bidding Documents, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, the sum of **Sixty-Nine Thousand, Seven Hundred Seventy-Six Dollars (\$69,776.00)**. In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

- | | |
|-----------------------------|--------------------------------------|
| 1. This Agreement; | 5. General Provisions and Insurance; |
| 2. Invitation for Bids; | 6. Specifications and Special |
| 3. Instructions to Bidders; | Provisions; and |
| 4. Signed Bid Proposal; | 7. Drawings. |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Kristina F. Jones, City Clerk

Patrick Collins, Mayor

Notary or Corporation Secretary:

SUBSCRIBED AND SWORN TO BEFORE ME

this ____ day of _____, ____

by _____

My Commission expires: _____

Goat Green, LLC

Contractor

By

Title

P.O. Box 381
Wellington, CO 80549